

Vikash Chaudhary vs Nisha Kumari on 1 March, 2024

Author: Rajiv Shakdher

Bench: Rajiv Shakdher, Amit Bansal

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IN THE HIGH COURT OF DELHI AT NEW DELHI

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MAT.APP. (F.C.) 372/2023

VIKASH CHAUDHARY

Through:

NISHA KUMARI

CORAM:

HON'BLE MR. JUSTICE RAJIV SHAKDHER

HON'BLE MR. JUSTICE AMIT BANSAL

ORDER

% 01.03.2024 [Physical Hearing/Hybrid Hearing (as per request)] CM APP. 12960/2024 & CM APP. 64764/2023

1. Allowed, subject to just exceptions.

2. This is an application, whereby, the applicant/appellant/husband seeks to withdraw the main appeal instituted under Section 19(1) of The Family Courts Act, 1984.

3. Via the appeal, the applicant/appellant/husband has assailed orders dated 13.10.2022 and 14.10.2022 passed by the Family Court Judge, North District, Rohini Court, Delhi.

4. In so far as the order dated 13.10.2022 is concerned, the defence of the applicant/appellant/husband was struck off as litigation expenses had not been paid.

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5. In so far as the order dated 14.10.2022 is concerned, the Family Court has disposed of the respondent's/wife's application under Section 24 of the Hindu Marriage Act, 1955 [in short, "HMA"], whereby, she was accorded interim maintenance of Rs.5,000/- per month, albeit, from the

date of filing of the application, i.e., 23.07.2018. The maintenance is to last only till the pendency of the divorce petition instituted by the respondent/wife.

6. Counsel for the applicant/appellant/husband says that the respondent/ wife has filed a divorce petition under Section 13(1)(ia) of the HMA.

7. It is averred in the application that the respondent's/wife's divorce petition was dismissed on 14.10.2023, albeit, in default.

8. We have queried counsel for the applicant/appellant/husband as to whether the applicant/appellant/husband has paid interim maintenance to the respondent/ wife post the Family Court order dated 14.10.2022.

9. Counsel for the applicant/appellant/husband candidly admits that the applicant/appellant/husband has not paid any money to the respondent/wife towards interim maintenance. Therefore, the prayer made in the application, which is that the applicant/appellant/husband should be allowed to withdraw the appeal, with liberty to revive the same if and when the respondent's/ wife's divorce petition is restored cannot be accepted.

10. The applicant/appellant/husband is seeking to have the best of both worlds. He seeks the option to revive the appeal challenging orders that struck off his defence and ordered payment of interim maintenance while also not wanting to comply with the order that directed payment of interim maintenance.

11. Notably, the applicant/appellant/husband has approached this Court, This is a digitally signed order.

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12. Therefore, we have declined leave to withdraw the appeal.

13. The application is, accordingly, dismissed.

14. This is an application preferred by the applicant/appellant/husband seeking condonation of delay.

15. The delay is sought to be explained by making vague assertions that settlement talks were on after the order dated 14.10.2022 was passed by the Family Court accorded interim maintenance to the respondent/wife. Furthermore, routine assertions have been made such as delay because of the time taken to obtain a certified copy of the impugned order, and time taken by counsel to prepare and file the appeal.

16. A perusal of the reasons would show that it is the applicant/appellant/husband who failed to act with alacrity. 16.1 There are no specifics that would persuade us to condone the delay.

17. As noticed hereinabove, there is admittedly a delay of 285 days in filing the appeal.

18. We are not inclined to condone the delay.

19. The application is, accordingly, dismissed. MAT.APP.(F.C.) 372/2023 & CM 64762/2023, CM 64763/2023

20. Given the order passed in CM APP. 64761/2023, the above-captioned appeal and applications are rendered ineffectual.

21. The appeal and all pending applications are, accordingly, closed.

RAJIV SHAKDHER, J AMIT BANSAL, J MARCH 1, 2024/rt lick here to check corrigendum, if any
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